

6	Gary, M.D., vs. Intefusion, LLC 2025-01507916	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <i>Tentative pending</i>
7	Gomez vs. BGN Acquisitions La Habra Hills 2026-01539087	1. Motion to Strike - Anti SLAPP 2. Motion to Strike - Anti SLAPP Motion 1: Anti-SLAPP by Kimball, Tirey & St. John, LLP (ROA 16) Defendant Kimball, Tirey & St. John, LLP's ("KTS") Special Motion to Strike the Complaint under the Anti-SLAPP Statute Each parties' respective request for judicial notice is GRANTED. (Evid. Code, §452, subd. (d).) <u>Legal Standard</u> A special motion to strike is authorized against SLAPP suits (Strategic Litigation Against Public Participation), i.e., lawsuits brought "primarily to chill the valid exercise of constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc., § 425.16, subd. (a).) An anti-SLAPP motion may be used to strike allegations of protected activity, even if the motion does not defeat the entire cause of action. (Baral v. Schnitt (2016) 1 Cal.5th 375, 385-390; disapproving Mann v. Quality Old Time Service, Inc. (2004) 120 Cal.App.4th 90 and its progeny). The anti-SLAPP statute is to be construed broadly. (Code Civ. Proc., § 425.16, subd. (a).) To prevail on the motion, the plaintiff's claim must (1) arise out of the defendant's protected speech or petitioning; and (2) lack even minimal merit. (Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.) Thus, in ruling on an anti-SLAPP motion, courts engages in a two-step process: "First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] [Second,] [i]f the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (Baral, supra, 1 Cal.5th at p. 384.) <u>First Prong – Protected Activity</u> KTS moves to strike each cause of action on the grounds that the activity alleged against it arises from statements and filings made in